



Participant's Guide to EEO Complaint Investigations

Office of Resolution Management
(ORM)

A. INTRODUCTION

1. **Office of Resolution Management (ORM):** ORM is authorized to investigate formal complaints of discrimination filed by VA employees or applicants. ORM's authority includes requesting pertinent records, requiring VA personnel to testify under oath or affirmation without a pledge of confidentiality, and issuing investigative summaries and files.
2. **Regulatory Authority:** EEO Investigations are conducted under to the authority of the following:
 - a. 29 C.F.R. § 1614, Federal Sector Equal Employment Opportunity.
 - b. U.S. Equal Employment Opportunity Commission Management Directive for 29 C.F.R. § 1614 (EEO-MD-110).
 - c. VA Directive 5977, Equal Employment Opportunity Complaints Process.
 - d. ORM Handbook 5977.1, Equal Employment Opportunity Complaint Processing Standard Operating Procedure.
3. **Participation:** Federal employees, which includes all employees of the Department of Veterans Affairs (VA), are obligated to cooperate in official investigations.
 - a. **29 C.F.R. § 1614.108(c):**
 - i. "The complainant, the agency, and any employee of a Federal agency shall produce such documentary and testimonial evidence as the investigator deems necessary.
 - ii. Participants are required to give testimony or complete a written affidavit under penalty of perjury without unnecessary delay.
 - iii. Failure to cooperate could result in a note in the investigative file that the factfinder may draw an adverse inference, establish facts in favor of the opposing party, exclude evidence produced later, decide the case on the basis of information available, or take other appropriate actions."
 - b. **38 C.F.R. § 0.735-12(b):** "Employees will furnish information and testify freely and honestly in cases respecting employment and disciplinary matters. Refusal to testify, concealment of material facts, or willfully inaccurate testimony in connection with an investigation or hearing may be ground for disciplinary action."
 - c. **Claims/Events:** All participants should be prepared to explain their position and provide evidence regarding the claims and events accepted for investigation.
4. **Confidentiality/Privacy Act:** Information associated with EEO complaints is governed by the Privacy Act of 1974 (5 U.S.C. § 552a) and Department of Veterans Affairs (VA) policies. Participants and recipients of EEO complaint information are responsible for protecting the information pursuant to Federal Law and VA policies. See www.oprm.va.gov. Information provided as part of

an EEO Investigation is not confidential and will become part of an official record to which individuals with an official need to know can be granted access. Participants should refrain from discussing anything relating to the formal EEO investigation with anyone except for designated representatives (if any) and individuals with an official need to know, such as officials who are involved with the processing or adjudication of the complaint.

5. **Alternative Dispute Resolution (ADR):** ADR is a process that can be utilized to resolve the EEO complaint. ADR offers many advantages, to include saving the time, effort, and money involved in litigating the complaint. Complainant or the agency should inform the EEO Investigator if ADR is desired.

B. WHO PARTICIPATES?

1. **EEO Investigator:** The EEO Investigator is a neutral third party whose role in this process is to conduct an impartial fact-finding inquiry, prepare an Investigative Summary, and compile an Investigative File (IF). The EEO Investigator decides who will participate, which documents will be included in the IF, and what questions will be asked. The EEO Investigator does not make decisions on the merits of the complaint.
2. **Complainant:** The Complainant is any VA employee, former employee, or applicant for employment who has filed a formal EEO complaint alleging a harm or loss with respect to a term, condition, or privilege of employment as a result of prohibited discrimination. The Complainant should provide testimony to the EEO Investigator about the specific allegations in the complaint, identify witnesses with direct knowledge of the accepted claims and events, and submit relevant evidence for consideration by the EEO Investigator.
3. **Responsible Management Official (RMO):** This typically is the individual identified by the Complainant as the person(s) they perceive to have discriminated against them. The Complainant may identify more than one RMO in their EEO complaint. RMOs are generally asked to testify about the complaint. To the extent necessary for a sufficient review of the circumstances under which the alleged discrimination occurred, the EEO Investigator will ensure that the RMO is briefed about and allowed to review evidence regarding allegations involving the RMO. The RMO is also given the opportunity to submit evidence and identify witnesses.
4. **Witnesses/Subject Matter Experts (SME):** Witnesses are individuals who provide sworn testimony about their knowledge of the claims and events accepted for investigation. SMEs are individuals who can supply information about VA processes and procedures. Complainant and the RMO can identify witnesses/SMEs for consideration, but the EEO Investigator ultimately determines who will participate in the investigation. The EEO Investigator will attempt to avoid unduly repetitious testimony, therefore only witnesses/SMEs

with the most relevant and direct knowledge of the claim(s) should be identified (i.e., those with first-hand or eyewitness information regarding the specific allegation(s) accepted for investigation). The EEO Investigator may include witnesses, including SMEs, who were not identified by Complainant or RMO that the EEO Investigator believes can corroborate or clarify testimony or evidence.

5. **Personal Representative:** A person who is selected and designated by the participant to accompany, represent, and advise them during any stage of the complaint process. A participant may designate an attorney or a non-attorney (such as a Union Representative) to represent them. Personal representatives may not provide testimony for the participant. Personal representatives may not occupy a position with VA such that their role as an advocate would present a conflict of interest. Generally, this precludes EEO program officials, employees in Human Resources, and VA managers and supervisors from serving as personal representatives.
6. **Agency Representative:** An agency employee (for example Agency Counsel) assigned to defend the agency's personnel policies and/or actions. Agency Representatives do not represent individuals and serve on behalf of the VA. Agency Representatives do not manage or direct the EEO investigation and may not testify for any participant.
7. **EEO Program Manager:** The EEO Program Manager serves as liaison between ORM and the organization where the alleged discrimination occurred.

C. WHAT HAPPENS?

1. **Notification:** When a formal EEO Investigation is assigned, the EEO Investigator will contact participants and representatives (if any) and arrange to collect statements and evidence.
2. **Method of Investigation:** EEO investigations are administrative investigations. The scope of EEO investigations are limited to the claims and events that have been accepted for investigation. The EEO Investigator may use one of several methods to conduct the investigation, to include written affidavits (also known as interrogatories), telephonic or Teams interviews, or on-site interviews. The method of investigation and witnesses to be interviewed is at the sole discretion of the EEO Investigator. Participants will be notified of the specific method to be utilized.
3. **Accommodation:** Participants should notify the EEO Investigator if any accommodation is required to fully participate in the EEO investigation.
4. **Witnesses:** Participants should be prepared to provide the names and contact information for individuals who can serve as witnesses to the actions,

decisions, or behavior that form the basis for the discrimination complaint. The EEO Investigator will establish a deadline for submission of witness names. If witnesses are named, the individual identifying them should provide:

- a. **Expected Testimony:** An explanation of the expected testimony of each witness and how their expected testimony is connected to each claim or event (if more than one claim or event are accepted for investigation).
 - b. **Organizational Information:** The job title, organization and duty station of each witness.
 - c. **Telephone Number:** A telephone number for each witness.
 - d. **Email:** An email address for each witness.
5. **Evidence:** Participants should provide any/all evidence pertinent to their testimony or to the claims/events accepted for investigation to the EEO Investigator.
- a. **Privacy Act:** Pursuant to the Privacy Act of 1974 (5 U.S.C. § 552a), all Personally Identifiable Information (PII) and Protected Health Information (PHI) must be removed from evidence prior to submitting to the EEO Investigator. See www.oprm.va.gov for more information.
 - b. **Federal Employee's Compensation Act (FECA) Records:** FECA regulations (20 C.F.R. § 10.10) restrict the release of records, and the information contained therein, connected to Workers' Compensation Claims or the Office of Worker's Compensation Program (OWCP). FECA Circular No. 09-05 (August 26, 2009) states that "agencies may not use copies of information from claims files in connection with EEO complaints, disciplinary actions, or other administrative actions without the employee's consent." As a result, no records or information covered under FECA should be provided to an EEO Investigator unless there is a valid Department of Labor waiver signed by the employee for this purpose (annotate the release with the EEO case number).
 - c. **Attorney-Client Privilege:** Communications between attorneys and their clients may be protected from disclosure to an EEO Investigator. Participants in the EEO complaint process should NOT submit any evidence (such as emails, documents, etc) that could be determined to be protected from disclosure by attorney-client privilege without the consent of the involved attorney or legal counsel. See *Federal Rules of Evidence, Rule 502, Attorney-Client Privilege and Work Product; Limitations on Waiver*. See also *Upjohn Co. v. United States*, 449 U.S. 383 (1981).
6. **Deadlines:** The EEO Investigator will establish deadlines for submission of affidavits, names of witnesses nominated by either party and documentary evidence. It is in the participants' best interests to comply with deadlines to ensure all evidence and testimony is included in the Investigative File when the investigation is closed. Note that 29 C.F.R. § 1614.108(e) establishes strict deadlines for completion of investigations.

7. **Amendments:** 29 C.F.R. §1614.106(d) provides that a Complainant may amend a complaint at any time prior to the conclusion of the investigation to include claims that are like or related to those raised in the complaint. Any requested amendments to the accepted claims must be directed, in writing, to the ORM District EEO Manager (the EEO Investigator can provide the name and contact information for the ORM District EEO Manager). A copy of the amendment request must also be provided to the EEO Investigator. The EEO Investigator will modify the investigation to incorporate any amendments and will solicit evidence and involve participants accordingly.
8. **Closing Investigation:** Once the EEO Investigator has collected pertinent evidence and testimony, the investigation will be closed, an Investigative Summary will be prepared, and the IF will be compiled. The Complainant will be provided with a complete copy of the file, along with a notice outlining their rights and the further steps in the process. The EEO Investigator does not make or recommend a determination of the merits of the complaint.

D. WHAT ARE THE STANDARDS OF PROOF IN AN EEO COMPLAINT?

1. **EEOC Management Directive 110 (EEO-MD-110)** provides Federal agencies with policies and procedures for processing discrimination complaints covered by 29 C.F.R. § 1614 (Federal Sector Equal Employment Opportunity). Appendix J of EEO-MD-110 provides the Models of Analysis (Standards of Proof) identified by EEOC. Several Models of Analysis are identified below. For other Models of Analysis, such as Hiring/Promotion and Discipline, please refer to Appendix J of the EEO-MD-110 at <https://www.eeoc.gov/federal-sector/management-directive/regulations-directives-guidance-and-resource-documents> (copy paste URL into browser). Please be advised that all not all Models of Analysis apply to individual EEO complaints; rather, specific Models of Analysis are applied to individual complaints based on the claims and events accepted for investigation.
2. **Disparate Treatment (Appendix J):** In individual complaints of discrimination, the Complainant has the ultimate burden of proof to show the agency/management took the actions being complained of for the purpose of discriminating. Complainant must show:
 - a. They are a member of a protected group.
 - i. They were treated differently than similarly situated employees not in the protected group (comparative evidence).
 - ii. Complainant can alternatively produce direct evidence that shows discriminatory intent.

- b. The agency/management has a burden to produce a legitimate and non-discriminatory reason for their action/decision (burden of production).
- c. Complainant needs to examine management's reasons for their action/decision and demonstrate that the articulated reasons are false and are a cover or mask for discrimination (direct or circumstantial evidence).

3. Retaliation (Appendix J-4): Complainant must show that:

- a. They previously engaged in protected activity or opposed unlawful discrimination.
 - i. The agency/management was aware of the activity.
 - ii. Complainant was contemporaneously or subsequently affected by some action of the agency.
 - iii. There is a connection between Complainant's activity and the adverse employment decision (for example, the adverse employment decision occurred within such a period of time that a retaliatory inference arises).
- b. Complainant can alternatively produce direct evidence that shows discriminatory intent.
- c. The agency/management has a burden to produce a legitimate and non-discriminatory reason for their action/decision (burden of production).
- d. Complainant needs to examine the agency/management's reasons for their action/decision and demonstrate that the articulated reasons are false and are a cover or mask for discrimination (direct or circumstantial evidence).

4. Disability-Reasonable Accommodation (Appendix J-5):

- a. Complainant must show that they have a physical or mental impairment that is readily observable or is established by medical documentation.
 - i. The impairment, when active or not taking into account any mitigating measures, substantially limits Complainant's ability to perform a major life activity.
 - a) Complainant needs to provide evidence on the activities affected, how they are affected, and the degree to which they are affected.
 - b) Alternatively, Complainant can show that they have a record or history of a substantially limiting impairment, or that they are regarded as having such an impairment.
 - ii. Complainant needs to demonstrate that the agency/management knew about their disability.
 - iii. Complainant needs to establish they are qualified to perform the essential functions of the job with or without reasonable accommodation.

- iv. Complainant needs to indicate whether they requested an accommodation, and if so, what accommodation was requested.
- b. The agency/management is required to:
 - i. Explain what action was taken in response to Complainant's request.
 - ii. Indicate whether an individualized assessment was conducted to compare Complainant's qualifications and limitations with the job requirements.
 - iii. State whether any identified accommodation would enable Complainant to perform the essential functions of the position, i.e., whether the accommodation would be effective.
 - iv. Identify any accommodation provided to the Complainant.
 - v. Provide an explanation if no accommodation was provided.
 - vi. If the agency/management contends a particular accommodation would impose an undue hardship, the agency/management needs to establish the cause based on the size of the program, the type of the program/operations, and the nature and cost of the accommodation.

5. Harassment/Hostile Work Environment: In order to present a case of harassment and/or hostile work environment, the Complainant must establish that:

- a. They are a member of a protected group.
- b. They were subjected to harassment sufficiently severe or pervasive to create a hostile work environment.
- c. The harassment had the purpose or effect of unreasonably interfering with the Complainant's work performance and/or creating an intimidating, hostile, or offensive work environment.
- d. The conduct or behavior would not have occurred but for the Complainant's membership in a protected group.
- e. If the Complainant's Supervisor is accused of causing the harassment, the agency must show they exercised reasonable care to prevent and/or promptly correct any harassing behavior and that Complainant unreasonably failed to take advantage of preventive/corrective opportunities or otherwise failed to avoid harm.
- f. If someone not in Complainant's supervisory chain is accused of causing the harassment, the Complainant carries the burden of proof to show the agency was or should have been aware of the harassing conduct and failed to take prompt or effective corrective action to stop the alleged harassment.

E. INSTRUCTIONS FOR COMPLETING AFFIDAVIT

1. Please respond to the questions included in the Affidavit.
 - a. Answer the questions as fully and completely as possible.
 - b. Avoid "yes" and "no" answers or explain them where appropriate.
 - c. Be sure that your response answers all the appropriate questions (i.e., who, what, when, where, why, how). Address only information relevant and related to the accepted claim(s).
 - d. You may use as much space as necessary to fully answer each question.
 - e. Avoid using technical jargon or acronyms unless you have defined the term or acronym first.
 - f. Avoid, to the extent practicable, referring to documents in the body of your answer unless you attach a copy of the referenced document to your Affidavit. Identify the document (attachment A, etc), and refer to the label in the affidavit.
 - g. Identify persons by name and title first. In subsequent responses, refer to the individual by name only.
 - h. If you feel that you have previously responded to a question in your Affidavit, you can state this in any response where pertinent. If possible, refer to the prior question (number, page number, etc).
 - i. If you do not understand a particular question or these instructions, please contact the EEO Investigator for clarification.
 - j. Ensure to redact PII/PHI and to remove documents/evidence protected by the Federal Employees Compensation Act (FECA) (unless the employee signed a Department of Labor waiver) or by attorney-client privilege (unless the involved attorney/legal counsel consents).
2. Once you are finished answering the questions, please complete your Affidavit by doing the following:
 - a. Sign and/or initial the Affidavit where directed.
 - b. Sign the Affidavit on the last page.
 - c. Date the Affidavit on the last page.
 - d. Attach all documents referenced in the Affidavit (emails, etc). Identify all documents provided in the Affidavit or in a separate Table of Contents.
 - e. Keep a copy of your completed Affidavit for your personal records.
3. Return your completed Affidavit to the EEO Investigator as directed in the Notice.